

CV-23-004326 WIGGINS, JOSHUA vs COLEMAN, TIMOTHY - Defendant's Motion to Quash Plaintiff's Civil Subpoena for Personal Appearance of Kelly Garner and/or for a Protective Order Against Plaintiff's Civil Subpoena of Personal Appearance of Kelly Garner - GRANTED.

County: stanislaus

Division: Civil Law and Motion

Department: 23

Hearing date: 2012-04-02

Motion: Preliminarily, the Court notes that Exhibit 3 to Plaintiff's counsel's opposing declaration has not been authenticated herein and appears to consist of inadmissible hearsay. In addition, Exhibit 4 likewise appears to consist of inadmissible hearsay and appears subject to exclusion pursuant to the provisions of Evid. Code § 1152 et seq. Based on the Court's review of the papers herein, as well as the Court's prior ruling denying Plaintiff's motion to compel further deposition testimony from Ms. Garner in August 2024, the Court finds that the subpoena for Ms. Garner's trial testimony is subject to being quashed. (Code Civ. Proc. § 1987.1.) The Court finds that the bulk of the testimony Plaintiff seeks to elicit from Ms. Garner is protected by the attorney-client privilege and/or the provisions of Evid. Code § 1152 et seq. Moreover, while the Court recognizes that there is no blanket prohibition in the law against Ms. Garner being called to testify as a witness regarding non-privileged matters in this context, it appears from the evidence presented herein that many, if not all, non-privileged matters contemplated by her testimony would be subject to exclusion on foundational and/or hearsay grounds. Therefore, the Court is unconvinced that Ms. Garner's testimony would carry any probative value herein; furthermore, any potential in that regard is substantially outweighed by the probability that its admission will necessitate undue consumption of time and/or create substantial danger of undue prejudice, of confusing the issues, or of misleading the jury. (Evid. Code § 352.)

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Based on the Court's review of the papers herein, as well as the Court's prior ruling denying Plaintiff's motion to compel further deposition testimony from Ms. Garner in August 2024, the Court finds that the subpoena for Ms. Garner's trial testimony is subject to being quashed. (Code Civ. Proc. § 1987.1.)

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Therefore, the Court is unconvinced that Ms. Garner's testimony would carry any probative value herein; furthermore, any potential in that regard is substantially outweighed by the probability that its admission will necessitate undue consumption of time and/or create substantial danger of undue prejudice, of confusing the issues, or of misleading the jury. (Evid. Code § 352.)